



DEPARTMENT OF THE NAVY
 NAVAL AIR WARFARE CENTER TRAINING SYSTEMS DIVISION
 12211 SCIENCE DRIVE
 ORLANDO, FLORIDA 32826-3224

**JUSTIFICATION AND APPROVAL
 FOR USE OF OTHER THAN FULL AND OPEN COMPETITION**

1. Contracting Activity.

Naval Air Warfare Center Training Systems Division (NAWCTSD)

2. Description of the Action Being Approved.

Award of a contract on a sole source basis for continued TH-57 Rotary Wing Pilot Training services for Chief of Naval Air Training (CNATRA) from FlightSafety Defense (FlightSafety).

3. Description of Supplies/Services.

This contract action will provide CNATRA continued TH-57 Aircrew Training System (ATS) services until the TH-57 is divested and replaced upon the delivery of the Advanced Helicopter Training System (AHTS) aircraft (TH-73A). The TH-57 was originally scheduled to be divested by 30 April 2025, but due to delays in the delivery of the TH-73A aircraft, the TH-57 ATS is now not planned to be divested until 31 December 2025.

The TH-57 ATS services contract provides contractor-owned Flight Simulation Training Devices (FSTDs) and Contractor Instructors (CIs) to Training Air Wing FIVE (TW-5) at Naval Air Station (NAS) Whiting Field, FL that satisfy all ground-based support for TH-57 rotary wing pilot training requirements.

This Firm-Fixed-Price contract effort will be structured with a period of performance (POP) consisting of an 8-month base period (01 May 25 – 31 December 25), four 4-month option periods (01 January 26 - 30 April 26, 01 May 26 - 31 August 26, 01 September 26 - 31 December 26, and 01 January 27 - 30 April 27), and one 6-month option period under FAR 52.217-8 (01 May 27 – 31 October 2027). The Option periods act as a risk mitigation strategy should the AHTS program experience further delays or unforeseen difficulties. The estimated cost of this effort, inclusive of the -8 extension, is [REDACTED] ([REDACTED] per month).

Estimated Dollar Value

	FY25 – FY27 Total
OM&N	[REDACTED]
Total	[REDACTED]

4. Statutory Authority Permitting Other Than Full and Open Competition.

10 U.S.C. 3204(a)(1), Only one responsible source and no other supplies or services will satisfy agency requirements.

5. Rationale Justifying Use of Cited Statutory Authority.

In accordance with FAR 6.302-1(a)(2)(iii), the services being procured through the anticipated contracting action are deemed available only from FlightSafety because an award to another source would result in a substantial duplication of cost to the Government that is not expected to be recovered through competition and unacceptable delays in fulfilling the agency's requirements.

The current contract, N6134018C0019, was competitively awarded to FlightSafety and provides the required TH-57 training services through 30 April 2025. Contract N6134018C0019 was awarded with a Period of Performance that aligned to the anticipated divestiture of the TH-57 program. Because of delays associated with the fielding of the TH-73 program, the Agency's requirement is for continued TH-57 training services commencing on 01 May 2025 through the adjusted TH-57 divestiture date.

FlightSafety's cost of each Level 7 FSTD in the FY18 competitive contract was [REDACTED], totaling [REDACTED] for the seven FSTDs. This cost was then amortized by FlightSafety over the current contract. Any other source would incur the cost of fielding new FSTDs, estimated to be [REDACTED] after escalation, and amortizing the cost over the new contract. Because the costs of labor are largely normalized through a Collective Bargaining Agreement (CBA) and the overall performance period is so short, there are minimal and insignificant remaining areas that a competition could recover these duplicative costs. Therefore, there would be a substantial duplication of cost to the Government that is not expected to be recovered through competition, estimated at [REDACTED].

Continued performance of these services, commencing on 01 May 2025, requires five Level 7 FSTDs. Beyond the time required to conduct a competition, unacceptable delays would be realized. If a contract was awarded immediately to another source, an aggressive delivery timeline (based on the existing contract schedule) for trainer delivery would be first trainer delivery in October of 2025, and one per month after that. The resultant gap in TH-57 pilot production would be from 01 May 2025 until February of 2026 (with some partial capacity beginning in October of 2025). Failure to commence training on 01 May 2025 would result in a negative impact on fleet readiness; and any delay in providing trained pilots is unacceptable.

On the basis of both substantial duplication of cost and unacceptable delays outlined in FAR 6.302-1(a)(2)(iii), FlightSafety is the only responsible source for this effort.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

A sources sought notice was posted to SAM.gov on 08 October 2024 with responses requested by 18 October 2024. One small business, [REDACTED] expressed interest in the procurement but was unable to demonstrate capabilities that it could meet mission requirements within the required schedule. [REDACTED] withdrew its interest following a meeting

with the TH-57 IPT to discuss the circumstances of the procurement. An Intent to Sole Source Notice was posted to SAM.gov on 13 November 2024 with responses requested by 29 November 2024. There were no responses to this notice.

Therefore, it is assessed that FlightSafety remains the only responsible source.

7. Determination of Fair and Reasonable Cost.

The Contracting Officer has determined the anticipated cost to the Government of the services covered by this J&A will be fair and reasonable.

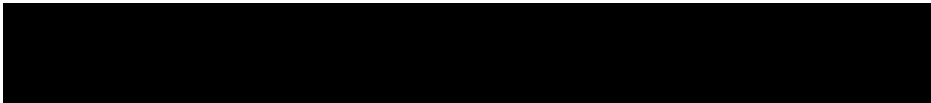
8. Actions to Remove Barriers to Future Competition.

For the reasons set forth in Paragraph 5, NAWCTSD has no plans at this time to compete future contracts for the types of supplies/services covered by this document. The services required by this document will cease with the final Naval Flight Student graduating from the TH-57 training syllabus, which coincides with the full transition to TH-73 training.

CERTIFICATIONS AND APPROVAL**TECHNICAL/REQUIREMENTS CERTIFICATION**

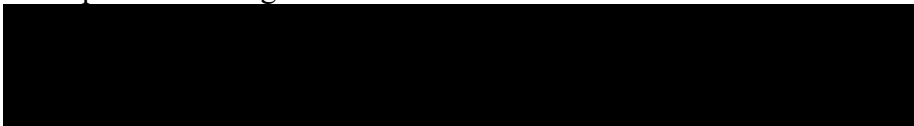
I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief.

Technical Cognizance:



Date

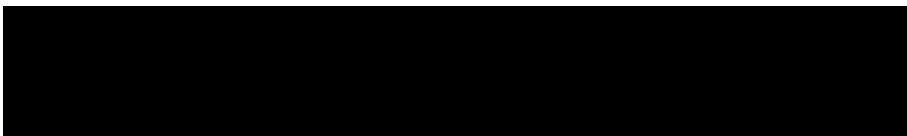
Requirements Cognizance:



Date

LEGAL SUFFICIENCY REVIEW

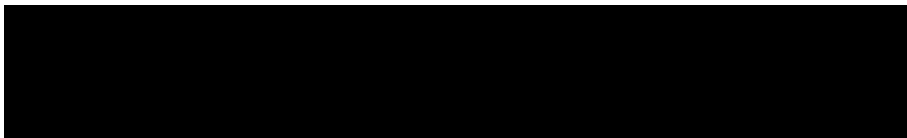
I have determined this Justification is legally sufficient.



Date

CONTRACTING OFFICER CERTIFICATION

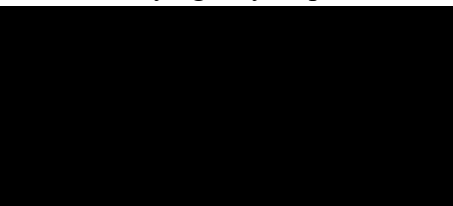
I certify that this Justification is accurate and complete to the best of my knowledge and belief.



Date

APPROVED

Upon the basis of the above justification, I hereby approve the solicitation of the proposed procurement(s) described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 3204(a)(1), Only one responsible source and no other supplies or services will satisfy agency requirements.



Date